STATE OF NEW YORK
WESTCHESTER COUNTY: YONKERS FAMILY COURT

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IN THE MATTER OF:

TARA KATELYN WALSH,

Petitioner/Respondent,

- vs. -

STEPHEN GRANT RUSSELL,

Respondent/Petitioner.

FILE NO: 154703
DOCKET NO.: V-07641-18
V-07641-18/21T
V-07641-18/21V
V-07641-18/21W
V-05280-21
O-03599-20
O-12635-19/21I
O-12635-19
O-12635-19/21J

----------x

LINDA RUSSELL,

Petitioner/Respondent,

- vs. -

TARA KATELYN WALSH,

Respondent/Petitioner.

DOCKET NO.: V-07641-18/21S
V-07641-18/21X

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Virtual Proceeding
131 Warburton Avenue, Third Floor
Yonkers, New York 10701
August 27, 2021

BEFORE: HONORABLE MICHELLE I. SCHAUER, Part 17

APPEARANCES: CHRISTOPHER SCOTT WEDDLE, ESQ.
Attorney for Tara Walsh
MASSIMO DIFABIO, ESQ.
Attorney for Stephen G. Russell
JENNIFER MARIE JACKMAN, ESQ.
Attorney for the Child
STEPHEN RUSSELL, Respondent/Petitioner, Pro Se
LINDA RUSSELL, Petitioner/Respondent, Pro Se

ALSO PRESENT: Tara Walsh, Petitioner/Respondent

Digital Recorded Proceeding, Valeri Wilson, Transcriber

Public copy: the child's legal name is shown as E.V.; private street addresses are removed. Otherwise unchanged.

(10:36:50 a.m.)

COURT OFFICER: Good morning. Today is August 27, 2021. This is the Yonkers Family Court, Part 17, Judge Michelle I. Schauer presiding in the matter of Walsh and Russell, file number 154703. Counsel, please state your appearance for the record starting with Mr. Weddle.

MR. WEDDLE: Chris Weddle, Timko and Moses, 1 North Broadway, White Plains, New York, appearing for Tara Walsh. Good morning, Your Honor. Good morning, everyone.

THE COURT: Good morning.

COURT OFFICER: Mr. Difabio?

MR. DIFABIO: Good morning, Your Honor. Max Difabio for Mr. Russell and also Ms. Linda Russell.

COURT OFFICER: Thank you. Ms. Jackman?

MS. JACKMAN: Good morning, Your Honor. Jennifer Jackman, attorney assigned to represent the child, E.V. [redacted]

COURT OFFICER: Thank you. Ms. Linda Russell, can you please raise your right hand? Do you solemnly swear or affirm to tell the truth?

L I N D A R U S S E L L, a witness herein, was examined and testified as follows:

MS. RUSSELL: Yes.

COURT OFFICER: Can you please state your name and address unless confidential?

MS. RUSSELL: My name is Linda Russell. It's [redacted], Punxsutawney, Pennsylvania.

COURT OFFICER: Thank you. Ms. Walsh, can you please raise your right?

MS. RUSSELL: Do I --

MS. WALSH: Yes.

COURT OFFICER: Do you solemnly swear or affirm to tell the truth?

T A R A W A L S H, a witness herein, was examined and testified as follows:

MS. WALSH: I do.

COURT OFFICER: Thank you. Please state your name and address unless the address is confidential.

MS. WALSH: My name is Tara Walsh and my address is confidential.

COURT OFFICER: Thank you.

MR. DIFABIO: Your Honor? Your Honor, I'm sorry to interrupt. My client just texted me about the Teams link. So I'm going to resend it to him right now if you don't mind?

THE COURT: Sure, go ahead.

MR. DIFABIO: Okay.

THE CLERK: And just so you know, Judge, I forwarded it to him as well.

THE COURT: Yeah, my clerk sent it to him as well

and he --

THE CLERK: Just about 30 seconds ago.

THE COURT: Yeah, about 30 seconds ago.

MR. DIFABIO: I'm texting him that, Your Honor.

THE COURT: What's that?

MR. DIFABIO: I'm texting him what you just said.

(Pause)

MR. DIFABIO: Judge, he's logging on.

THE COURT: All right, thank you.

(Pause)

THE COURT: We're letting him in now.

MR. RUSSELL: Good morning.

COURT OFFICER: Good morning, Mr. Russell. Can you please raise your right hand? Do you solemnly swear or affirm to tell the truth?

S T E P H E N G R A N T R U S S E L L, a witness herein, was examined and testified as follows:

MR. RUSSELL: I do.

COURT OFFICER: Can you please state your name and address unless the address is confidential?

MR. RUSSELL: Stephen Grant Russell, [redacted], San Francisco, California, 94109.

COURT OFFICER: Thank you.

THE COURT: Before we begin, I would like to remind you that the rules of the chief judge provide that

recording, broadcasting, or streaming of court proceedings is not permitted. Accordingly, I'm ordering you not to record this broadcast or stream these court proceedings. The Court is making the only official record of this proceeding and any violation can be prosecuted as Contempt of Court punishable by fine or imprisonment pursuant to Judiciary Law Section 750.

So we're here for a conference on a number of petitions and some new things have been filed. The first thing I would like to address is the Order to Show Cause filed by Mr. Difabio asking to be relieved from representing both Mr. Russell and Linda Russell. Mr. Russell, were you served with Mr. Difabio's Order to Show Cause?

MR. RUSSELL: Indeed. I'm ready to represent myself, Your Honor. I understand the risks and I appreciate you taking the time today to hear from me in person on that matter, but I'm looking forward to representing myself pro se.

THE COURT: Okay. Ms. Russell, you understand that Mr. Difabio filed an Order to Show Cause asking to be relieved from representing you?

MS. RUSSELL: Yes.

THE COURT: And what is your position with respect to that request?

MS. RUSSELL: I -- I agree.

THE COURT: You agree for him to be relieved?

MS. RUSSELL: He's no longer my attorney.

THE COURT: He's no longer your attorney? Okay. Thank you. You're free to go, Mr. Difabio.

MR. DIFABIO: Thank you, Your Honor. Good luck, everyone.

MR. RUSSELL: Thanks a lot, Max. Thank you for everything. Have a great day.

MR. DIFABIO: Thank you.

THE COURT: Okay. Moving on, we had an Order to Show Cause filed last night by Ms. Jackman. I don't know if you've had the opportunity to serve everybody.

MS. JACKMAN: Yes, Judge. Service was effectuated in accordance with the Order to Show Cause that was signed by Your Honor.

THE COURT: Okay. So have you seen it, Mr. Russell?

MR. RUSSELL: I have not read it in detail, but I spoke to Ms. Jackman about it on the phone and I -- you know, I don't -- do not object. I appreciate her services very much and I think she's making the right decision.

THE COURT: Okay. So you're consenting. Mr. Weddle? You're muted.

MR. WEDDLE: I received a copy of the Order to

Show Cause. I've spoken to my client about it and I've spoken to Ms. Jackman about it and I have no objection.

THE COURT: So Ms. Jackman's Order to Show Cause is granted on consent. You are relieved, Ms. Jackman.

That leaves us without an attorney for the child, so there will be limited progress we can make with today's proceeding until I assign a new attorney to represent the child.

MS. JACKMAN: Thank you, Your Honor. May I be excused?

THE COURT: Yes. But what we can discuss just from a procedural perspective is I don't know what was filed this morning, Mr. Russell?

MR. RUSSELL: Would you like me to go through those quickly?

THE COURT: They're Family Offense petitions? It looks like this --

MR. RUSSELL: The first was the motion yesterday that you requested be subject to today, so it was reformatted so that it would not be a Family Offense petition.

The second is that there's some mistake about the status of the case, what's before you, after Judge Humphrey and Horowitz understandably given, you know, how -- you know, how complicated that is. And then a third motion as

well.

THE COURT: Okay. Did you serve those motions on Mr. Weddle?

MR. RUSSELL: My understanding is that because of the confidentiality ruling that Tara is under that service can be through either the clerk or Mr. Weddle. I'll ask Mr. Weddle if Max sent it to him prior to him stepping down as -- as counsel, as he's no longer in the room with us.

THE COURT: Mr. Weddle, are you willing to accept service of these motions? I believe there's two of them. One is captioned Motion for Case Schedule and Clarification of Issues Before the Court. And just let me pull up the other one. The other one is Motion for Inquiry into Walsh's Financial Condition and Termination of Appointed Counsel Based on Alleged Financial Hardship. Mr. Weddle?

MR. WEDDLE: I'll accept service, Judge. I haven't seen them.

THE COURT: All right. So I'll have my clerk forward those to you.

MR. WEDDLE: Thank you.

THE COURT: So without an attorney for the child here today, as I said, there's going to be limited things that we could do. So you can ask; I'm not sure I'll be able to grant any relief today.

MR. RUSSELL: One thing, Your Honor, I think

might be very helpful is just to kind of walk through, you know, your very first, and I thought great, question the first time we met and got together was what was actually before us?

It was pretty complicated at that point in time. We had had a situation where Judge Humphrey had sat between -- sat for Judge Horowitz and Judge Horowitz had issued, at that point in time, two final orders.

One final order was -- we are aware of. We received in October/November time frame of last year and the other final order was, dated May 19th, was given only to Ms. Walsh ex parte. We learned about that final order in November during a conference with her.

A Motion to Vacate was filed with you and you granted that Motion to Vacate. What that Motion to Vacate did was eliminate the first secret final order, but kept the second final order in place.

THE COURT: So I don't -- I don't think that's accurate, Mr. Russell. But I think I agree with you that we need to, at this point, try to just clarify what happened.

I believe what happened is after going through the dockets, Ms. Walsh with her counsel consented to vacate Judge Morales-Horowitz default against you. So those defaults resulted in a permanent Order of Protection and a

custody order. So vacating those defaults reinstated those petitions and I know there was --

MR. RUSSELL: Respectfully, Your Honor, the text of -- of what we filed was -- was written in a -- in a particular way to address a very particular issue. I -- it was very strange that Horowitz had issued two final orders. It was very strange that one of those final orders had been given to Ms. Walsh directly. It was very strange that there were refusals from the Court to provide us copies with the docket or that final order.

THE COURT: Okay, Mr. Russell, you're muddying the record here. Those -- whatever those orders were, they were vacated. So there's no point really in discussing them anymore. The orders were vacated, but the underlying petitions remained. That's why we are still addressing Ms. Walsh's custody petition and her Family Offense petition. You subsequently --

MR. RUSSELL: I'll just --

THE COURT: -- recently actually -- I think it's on for a preliminary proceeding today. On July 27th, you filed a petition seeking custody and visitation.

MR. RUSSELL: Everything --

THE COURT: That's scheduled for a preliminary proceeding today. Did you serve --

MR. RUSSELL: That's all --

THE COURT: What's that?

MR. RUSSELL: I -- I don't know that I have, Your Honor and -- but before --

THE COURT: You don't know that you have what? Filed a custody petition?

MR. RUSSELL: With -- if you'll indulge me, I'd like to address your previous point, then this point, just because I'm having a little trouble kind of catching up with the new topic.

We did not vacate Horowitz's October decision. It was deliberately -- the Motion to Vacate was deliberately written so as her October decision was not vacated. Again, this is not your fault. She did a very odd thing. But her October decision dismissed all the petitioner's claims. So we did not dismiss that final order.

The sole purpose of our Motion to Vacate was to address this very unusual situation where, without a hearing and ex parte, a secret final order had been given to Ms. Walsh. Upon your executing that Motion to Vacate the October order, that simply said all the petitioner's claims are dismissed, remained in effect.

And you are right. There is still a custody order before you because we have filed. But I do not know if we have served. I've -- that would be a question for

Mr. Weddle to answer at this point.

MR. WEDDLE: I'm -- I'm looking, Judge. This file is rather large.

THE COURT: Right, and it keeps getting muddied by -- I keep saying to stop filing petitions that are redundant. They repeat the same claims over and over and over and over and -- and that's why we sit here and spend a lot of time discussing procedural issues and not substantive issues.

MR. RUSSELL: Your Honor, that's -- in this case, I'm attempting to clean up the docket. I have never -- I --

THE COURT: Okay. So, but then answer -- Mr. Russell?

MR. RUSSELL: Yes?

THE COURT: I know what I need to know.

MR. RUSSELL: Yeah.

THE COURT: So it's helpful if you just try to answer my questions. And certainly when we go to a trial, it's going to be very difficult if you don't listen to the question and answer what's asked.

So, okay, I did vacate, Judge, and this was on consent, Morales-Horowitz's order to the extent that she issued on default a permanent Order of Protection against you on behalf of Ms. Walsh and a custody order. So to the

extent that she dismissed your petitions, I don't know that I specifically reinstated them.

In any event, you have filed several new petitions, and so I think that your requested relief is incorporated in these new petitions; one of which was filed on July 27th and you're seeking custody and visitation.

MR. RUSSELL: There -- there are --

MR. WEDDLE: If you'll excuse me, may I?

MR. RUSSELL: Yeah, of course, of course, Mr. Weddle.

MR. WEDDLE: Judge, I am in receipt of the July 27 petition.

THE COURT: Okay. So are you acknowledging service?

MR. WEDDLE: I'll acknowledge service.

THE COURT: And your position?

MR. WEDDLE: My position is I'm entering a denial. I believe custody should stay with Ms. Walsh.

THE COURT: Okay.

MR. WEDDLE: However, Judge, can I make one other comment?

THE COURT: Yes.

MR. WEDDLE: All right. Well, just in terms of what we can accomplish today, I -- I do not see why the Court's order for forensics needs to be stayed until an AFC

is appointed. That's a little --

THE COURT: It's not. I just haven't gotten to that issue yet.

MR. WEDDLE: All right. Sorry, Judge. I didn't mean to get ahead of you.

MR. RUSSELL: The last thing I'll just say, Your Honor. I think that what you just read is not inconsistent with what I stated.

The October order of Horowitz was left in place. It is -- given the complexity and how much paper is in this case, it's understandable that that mistake was made, but we wrote the Motion to Vacate and we wrote it specifically to get rid of an order that we did not receive that was dated in May.

There was a subsequent order in October that simply and flatly dismissed all the petitioner's claims. This is an opportunity to clear the deck. You had asked that I refile my custody claims and I think Max did.

THE COURT: That's correct. So --

MR. RUSSELL: And --

THE COURT: So I now have a petition by which you are seeking custody and visits with your daughter. So that issue has been restored.

MR. RUSSELL: In Ms. Walsh's case, she has not refiled and her -- the claims upon which she based

jurisdiction here, as well as her claim of custody, have been dismissed with prejudice in the San Francisco court.

THE COURT: So that jurisdictional issue is worth discussing.

MR. WEDDLE: That jurisdictional issue was resolved, Your Honor.

THE COURT: I believe that I read it was resolved before Judge Gordon-Oliver.

MR. WEDDLE: That is correct and pursuant to the CJID (sic), did I get that right, the California court and the New York court did communicate and agree that New York should have jurisdiction. I've seen that -- I've seen that actually just recently affirmed in the decision by a California appeals court that New York had jurisdiction over the custody issue.

If I may, Judge, I think essentially if you throw out all the chaff, all you have before you are cross petitions for custody and visitation and cross Family Offense petitions.

MR. RUSSELL: Mr. Weddle is not correct.

THE COURT: Correct. That's my understanding and I did see notes in the file. I just want to be accurate, Mr. Russell. I did see -- and I'm looking for them now, so that I can be accurate in what I state. But I do recall seeing notes that Judge Gordon-Oliver did do that inquiry

and did -- it was concluded with a decision that New York would retain jurisdiction.

MR. RUSSELL: It's -- that's not correct, (inaudible) to be sort of beneficial or meaningful to you, I'll -- I'll comment on it since Mr. Weddle was not present for this piece. The -- at the point in time that Ms. Walsh left for a quote vacation --

MS. WALSH: Can I just say something, Your Honor? Because I'm -- I'm very concerned that Mr. Russell --

MR. WEDDLE: No --

MR. WEDDLE: -- is just trying to read a transcript to use on his website.

MR. WEDDLE: -- I'm -- I'm sorry. Just we're doing one thing at a time here.

MS. WALSH: Okay.

MR. RUSSELL: And, Judge --

MR. WEDDLE: And I think what --

THE COURT: I just want to ask you, Mr. Russell, what --

MR. RUSSELL: Correct.

THE COURT: -- what transcript? Because I know you've been ordering, it seems like, all of the transcripts. So you tell me why you believe New York did not retain jurisdiction. By -- by -- not by statements, but by either a transcript or a motion or an order, some

piece of paper that I can look at that would support what you're saying.

MR. RUSSELL: My -- my statement was that what Mr. Weddle said was not great, but -- and not correct, but I take your point. So there -- if you'll indulge me on two minutes of -- of context here.

I'd been granted custody. There was a court date scheduled for October 2018. Tara's father negotiated a two-to-three-week vacation ostensibly to see her family and her doctors. And this was negotiated between attorneys as a short-term carve out to that court order. Otherwise, Tara was in violation -- would be in violation of a court order leaving the state. Your Honor once admonished me that -- to help Tara understand that I would never leave the state with Evie, that this would be something that would immediately terminate any hope that I had for, you know, parental rights in the short term.

THE COURT: Okay. Can I just --

MR. RUSSELL: That --

THE COURT: Can I just stop you for a moment because I found the note that I was referring to?

MR. RUSSELL: Uh-huh.

THE COURT: On September 11th, 2018, before Judge Gordon-Oliver --

MR. RUSSELL: Uh-huh.

THE COURT: -- the notes say -- now I'm not saying these are true. I'm just telling you what I'm reading in the notes.

Parties have agreed to drop Family Offense petitions in New York and California. Parties have agreed to have visits supervised by Delia Farquharson. Parties have agreed that New York is the proper jurisdiction. Respondent Father will likely get a place in New York if Court will permit him to have overnights if his mother comes out and lives with them. Court denies overnights at this time. Court orders both parties to undergo drug screening forthwith.

MR. RUSSELL: So, I mean, this is -- there's some real useful bits in there. And so that document did exist, but it's not as described. There was a conference call prior to court, as, you know, as you would expect between the judge in San Francisco attempting to maintain custody -- or, sorry, jurisdiction in San Francisco and the -- and Gordon-Oliver, of course, was on that call. The transcript of that call is available. It's a very interesting and one-sided call.

Honorable Gordon-Oliver's position on the call was the same position in -- in court. Jurisdiction is mine. If you challenge it, you will lose. The only way to see your daughter is, you know, starting today to go see

your daughter with what turned out to be the second of three friends.

THE COURT: All right. So, again, let me just interrupt, Mr. Russell, because you're wasting time discussing things that are, at this point, resolved and not an issue.

I am now looking at an order from Honorable Roger Chan, a judge of Superior Court of California, County of San Francisco, Unified Family Court. That is an order dismissing proceedings. It is dated September 28th, 2018. The Superior Court of the State of California, County of San Francisco, declines to exercise jurisdiction and the Petition to Establish Parental Relationship filed on June 4th, 2018 and all related proceedings are hereby dismissed.

New York has jurisdiction over these proceedings, and if you are objecting to that, the time has far passed for you to file an appeal from the California order. So we are not spending any more time about whether or not New York has jurisdiction.

I'm also looking at an order from -- from Judge Gordon-Oliver dated September 11th, 2018, in which it says exactly what I just said was reflected in the notes.

MR. RUSSELL: I -- I assume the answer to the (inaudible) --

THE COURT: Petitioner shall withdraw her Order of Protection and Violation. Petitioner and Respondent shall withdraw his Order of Protection in California and violation petitions. Respondent shall also contact the California police and state that he does not wish to press criminal charges against Petitioner for, does it say, drugging? And, if necessary, the parties will enter into a written agreement concerning these issues. The parties consent to New York having jurisdiction over this.

I am not discussing jurisdiction any more. It is done, for better or worse, Mr. Russell. There are court orders. I'm not an appellate court. I can't reverse these orders and your time to appeal has expired. So New York has jurisdiction.

MR. RUSSELL: Your Honor, I -- I -- I -- I can hear --

THE COURT: I only want to address whether or not all of your issues are pending in current petitions. You filed your custody petition so you've got custody. That's a valid issue before the Court.

MR. RUSSELL: Okay. Well, I -- I -- I appreciate that and I'll try to attempt to confine my remarks to, you know, as you say. I was attempting to answer your question as best I could. With --

THE COURT: With respect to -- I just have

another question with respect to the Family Offense petition, which was filed this morning. It looks to be the same Family Offense petition that I heard yesterday. It -- it is not, as I said yesterday, it is not a Family Offense petition. It is perhaps what you've said here relevant to custody issues, but it is not a Family Offense petition that is appropriate under the Family Court Act of New York State.

MR. RUSSELL: Have you had --

THE COURT: I strongly encourage you to get an attorney and to proceed with this in a legally appropriate fashion. At this point, what you're doing is like scattered gunshot and it's not organized and it's not helpful to me as a judge to understand exactly what you're trying to do in this case. In any event --

MR. RUSSELL: I --

THE COURT: -- I have said --

MR. RUSSELL: I -- it --

THE COURT: -- that I am issuing an order for a forensic evaluation. I'm doing that today and --

MR. RUSSELL: I will not comply with that order, Your Honor. We should go to trial. You're welcome to take a negative inference.

THE COURT: Okay. And I will -- and I will do that, Mr. Russell.

MR. RUSSELL: I -- I -- I suspect that you will not after hearing the evidence, but you are certainly welcome to do so and I appreciate you sharing with me that you have that right.

THE COURT: Okay. So as far as any other issue that we can discuss today, I think that my hands are tied by virtue of the lack of an attorney for the child.

MR. RUSSELL: There is one, Your Honor, that you can address today. The -- you were left with a -- when Judge Humphrey recused himself, it had been following two hearings on an access and Family Offense petition that he heard. Tara was represented. Both Tara and her attorney did not resp- -- did not show up. It was rescheduled. They defaulted similarly on that second occasion. (Inaudible) of -- of (inaudible) --

THE COURT: Wait. You're breaking up, Mr. Russell.

MR. RUSSELL: I -- I -- I'm sorry for the -- for the -- the new motions. I've -- I've actually had to file orders attempting to get myself and my family protected quite a few times because they had not been heard. Humphrey, to his credit, did hear it -- attempt to, not once but twice, and Mr. Weddle and Ms. Walsh did not show up. They defaulted. And whereas I was denied access to my daughter for over a year for a situation where I was not in

default. My attorney was present and that was a visitation conference.

These were two hearings on the same issues that you now have, you know, kind of find dumped in your lap that should've been resolved prior to getting to you. I apologize for that.

THE COURT: Wait. Are you saying he had a hearing on these issues and didn't render a decision?

MR. RUSSELL: Correct. He had two hearings. Because Ms. Walsh and Mr. Weddle did not show up for either, I have been waiting for, you know, what I would expect to be a fairly straightforward ruling.

That filing, Your Honor, is substantially similar to what you have before you. It was filed upon the expiration of the permanent Order of Protection I received in San Francisco.

The request was that those specific terms be extended in Westchester. It gave good reasons why. The courts and the police had asked that Westchester take over that jurisdiction and it talked about the -- the effect, the absence of that protective order, was having on my ability to see my daughter.

You know, having two hearings that Ms. Walsh defaulted in should be more than sufficient to grant what was frankly a very straightforward request of the Court.

MS. WALSH: Your Honor, just to --

MR. WEDDLE: Judge?

THE COURT: Okay. Let -- your attorney has had his hand up. Mr. Weddle?

MR. WEDDLE: Yeah, Judge, first of all, I don't know that I had been assigned to that matter.

Second of all, they were not hearings. I think there was an appearance and I think there was a question as to whether there was adequate service on Ms. Walsh.

Third of all, that -- that issue is still pending before your Court. You, in fact, had issued a temporary Order of Protection for Mr. Russell's benefit. As I told you on our last appearance, the genesis of that Family Offense petition was this alleged drugging. I do intend to make a Motion to Dismiss, as I informed the Court on our last appearance, because that matter has been addressed squarely by the courts in California and res judicata full faith credit does apply.

MR. RUSSELL: Mr. Weddle (inaudible) --

MR. WEDDLE: I'm still talking, Mr. Russell. Excuse me.

THE COURT: Please let him finish.

MR. RUSSELL: I -- I apologize, but you, you know, you're incorrect.

MR. WEDDLE: So that -- that matter is not dead.

It is still alive. I don't think that Judge Humphrey would've issued a final order without at least a Notice of Inquest being sent out, which I certainly never received.

MR. RUSSELL: He -- he did not.

MR. WEDDLE: Thank you, I'm finished now.

MR. RUSSELL: Yeah, I'm sorry. So he did not send a final order. Other than that, what Mr. Russell (sic) said -- what Mr. Weddle said is not accurate. The -- the filing for protection and extension of the permanent order in San Francisco was a little unique, a little different, than a normal Family Offense petition. He did not grant it on a temporary basis. Instead, he had filed a hearing.

At that first hearing, Ms. Walsh and Mr. Weddle did not show up and Mr. Humphrey did not -- Judge Humphrey did not know that Tara was in the confidentiality program. So he asked was someone served? No, someone wasn't served. In the email correspondence following that first hearing, the documents relating to Tara's confidentiality --

THE COURT: Okay, wait. Mr. Russell, are you saying that you want to have open your Family Offense petition against Ms. Walsh?

MR. RUSSELL: I had two hearings, Your Honor. They defaulted. I'd like a ruling in my favor and --

THE COURT: When were those hearings?

MR. RUSSELL: They were the -- the only matter before the Court just prior to you, so Judge -- Judge -- actually Judge Humphrey --

THE COURT: You need to give me a docket number because of all the voluminous filings in this case, it's not easy for me just to figure out what you're talking about, which is why I say it is not helpful --

MR. RUSSELL: Your Honor, I don't have a copy of the --

THE COURT: -- to keep filing the same things over and over, Mr. Russell. Tell me a docket number and a date.

MR. RUSSELL: Your Honor, the Court has refu- -- I'm sorry to talk over you, Your Honor. I'm just more chuckling, but I have asked for a docket. Max has asked for a docket. My attorneys in the upcoming battery case have asked for a copy of the docket. My attorneys in the RICO case have asked for a docket.

THE COURT: You're telling me you filed a petition and she defaulted. I don't know what it means that you've asked for a docket number. If you filed a petition, what docket number is it?

MR. WEDDLE: I -- I could take a stab at that, Judge.

THE COURT: Go ahead.

MR. WEDDLE: I think it's -- it could be O-12635 and it's either dash 19 or dash 19/19C maybe.

THE COURT: 12635, I'm pulling up right now. It looks like it's your client's petition.

MR. WEDDLE: That's -- Judge, the caption I'm looking at has Mr. Russell as the petitioner.

THE COURT: The one in the court file is -- is Ms. Walsh against Mr. Russell.

MR. WEDDLE: I don't know that, Judge. That's the only one I have and it has Mr. Russell as the petitioner.

MR. RUSSELL: Your Honor, I -- I will follow up, but I have not been provided the docket. I -- I do not know why. I've asked quite a few times.

THE COURT: When was it filed?

MR. WEDDLE: It was sworn to on February 23rd of this year, Judge.

THE COURT: No, I'm asking Mr. Russell when he filed his petition --

MR. RUSSELL: It -- it --

THE COURT: -- that supposedly there was -- there was a hearing on.

MR. RUSSELL: It was filed pro se in early February. I want to say there was the first hearing, the first default, was on, it might have been, February 10th or

February 23rd. There was a subsequent --

THE COURT: Of what year, Mr. Russell?

MR. RUSSELL: This is of last year. This is just prior -- just -- just prior -- I'm sorry, of this year, just prior to you taking over the case.

THE COURT: Okay.

MR. RUSSELL: This was the last -- this is one of the points that, you know, you had Humphrey acting really as I described the situation with Horowitz. His -- the sole matters before Humphrey were the Motion to Vacate, which, you know, he had not taken up and this particular order that, again to his credit, he had not one, but two hearings.

And beyond that the only other matter that I'd say that he took up was to give Ms. Walsh not one, but two, Court-appointed attorneys though she does not qualify.

THE COURT: Okay. Again, you're saying many different things at the same time, Mr. Russell, and I'm having a hard time following you. I would suggest, because I can't see this in the file, that you follow up with Judge Humphrey's part and figure out exactly what -- you're saying he had a hearing. Exactly what the hearing was and whether he issued a decision and send it to me.

If your question is whether you still have a Family Offense petition pending against Ms. Walsh? Is that

your question?

MR. RUSSELL: No. Well, my -- my --

THE COURT: I can't issue a decision on what -- on any hearing that Judge Humphrey had. You understand that?

MR. RUSSELL: I -- I have a -- I have a specific request for you just to start with. The -- the -- I've been told because of my whistleblower status and the sensitivity especially around --

THE COURT: Who told you? Let's start with that. Somebody told you; who told you?

MR. RUSSELL: The -- my -- the attorney in my battery case and --

THE COURT: And that's a California attorney?

MR. RUSSELL: -- contacted a clerk.

THE COURT: Okay. Mr. Russell?

MR. RUSSELL: Yes?

THE COURT: Are you talking about a California attorney?

MR. RUSSELL: Yes, the attorney in my battery case and --

THE COURT: So this is your attorney that you've retained?

MR. RUSSELL: Correct.

THE COURT: And what is your attorney's name?

MR. RUSSELL: Joy Llaguno.

THE COURT: Spell that please.

MR. RUSSELL: It's L-l-a-g-a-u-n-o (sic).

THE COURT: Now she told you what?

MR. RUSSELL: That -- this actually -- there are -- this happened three times and the script went exactly as follows. Hi, I'd like a copy of my full docket please. Or it was an attorney asking on my behalf. The clerk very kindly said, yes, happy to get to that you. We'll get that to you by end of day. Then a follow up after finding out it was my case, no, I cannot give that to you.

THE COURT: Okay. So what does that have to do with me? You're telling me that you wanted some information on a California battery case and your attorney couldn't get it?

MR. RUSSELL: You've -- and I just -- I appreciate, Your Honor, I can hear you very well and -- and I know this is frustrating, but -- but you -- you --

THE COURT: What I want to tell you, Mr. Russell, is that you are spending time discussing issues that seem like they should be not a priority to you. If you're looking to get custody of your daughter and you're looking to see your daughter and you're telling me about things that happened in other courts, you must understand, you're a smart guy, I don't have the authority to do anything over

a California case.

MR. RUSSELL: I -- I -- I -- you misunderstand my point. You've asked twice during this hearing for information that if I were prepared and had this -- the docket in front of me. I could answer the questions for you and I would've loved to have done that. I can't do that because --

THE COURT: All right. Then we're not discussing it. If you don't have the information to answer my questions, we're not discussing it.

MR. RUSSELL: I -- I would like you to order your court to provide it to me. I'm entitled to it and they refuse.

THE COURT: To provide? I don't know what you're asking me for, Mr. Russell. I would be happy to provide you with whatever it is you're -- you're --

MR. RUSSELL: It's -- it's -- it's simply a copy of the -- of the file, Your Honor. I am now representing myself and I would like a copy of the file.

THE COURT: But we don't send copies of files. How it works is you come to the courthouse. You sit in the Clerk's Office and, under supervision, you can review the court file. That's how it works. You can contact my part when you're ready to come to New York and review the file and we will happily show you the file. There is no sending

of the file. That, you can get from your attorney.

Whatever he has, whatever orders or copies of petitions or copies of motions, he can certainly give to you. Anything else that you think you don't have or you're wondering about, you can review in the same way that any other pro se litigant can review. By coming to the courthouse and sitting in the Clerk's Office at the computer and reviewing the documents. So I'm not -- I'm not discussing that anymore.

Are you planning on coming to New York? Because at some point this case is litigated in New York. You can't do it by video.

MR. RUSSELL: I --

THE COURT: I'm doing all of my trials in person right now.

MR. RUSSELL: Oh, I'm -- I'm looking forward to the trial, Your Honor, and -- and -- and you will see, you know, me in -- in the courtroom barring, you know, a decision from you that that's not viable. When we can we schedule that trial?

THE COURT: Well, I'm ordering the forensic. You may not cooperate, but Ms. Walsh --

MR. RUSSELL: I'm not complying with that.

THE COURT: -- Ms. Walsh will have to cooperate and once that is completed, we will schedule the trial.

MR. RUSSELL: Are you aware there have been five forensics in this case, Your Honor?

THE COURT: I have not seen any completed forensics, so I am unaware of what you mean by five forensics. So tell me who did the forensics.

MR. RUSSELL: The one most immediate, let's start with the one that Ms. Jackman was requesting be -- be reinstated. So $60,000 was spent with Dr. Paul Hymowitz. Dr. Paul Hymowitz was -- had let the Court know that he was ready to make a glowing review of myself. He felt, at that point, I was also being denied access to Evie. But --

THE COURT: All right. Let me stop you right there, Mr. Russell, because we -- I don't -- I haven't seen what Dr. Hymowitz did, but I know that we discussed on, I think it was, the last court date whether we could get an update from Dr. Hymowitz. He had not completed the evaluations is my understanding.

MR. RUSSELL: He -- Judge, one second --

THE COURT: So you might believe that he was going to give you a --

MR. RUSSELL: I think --

THE COURT: -- glowing recommendation, but one second.

MR. RUSSELL: That's incorrect.

MR. WEDDLE: Your Honor, that -- that --

THE COURT: He did not --

MR. RUSSELL: That's incorrect, Your Honor. People have told you quite a bit of, I would say, jaundiced items. In -- in his case, what he was not ready to do was render a judgment on the safety of Mr. -- of Tara's parents.

At that point in time, a -- quite a bit of information had surfaced before him. He asked the Court permission to make an adjudication on myself, but not yet on the Walshes because --

THE COURT: Okay. And where did he do that, Mr. Russell? Where did he do that? Because I'm unaware and it would be very atypical --

MR. RUSSELL: It's terrible that you are --

THE COURT: -- of a forensic evaluator to do -- to make that kind of a request. But the bottom line is --

MR. RUSSELL: Are you -- are you accusing me of lying, Your Honor?

THE COURT: -- that I can't do a trial without a forensic evaluation.

MR. RUSSELL: Right.

THE COURT: We discussed whether Dr. Hymowitz would complete the evaluations, as well as do an update because anything that he did would have been stale. And I believe that someone, I think it might've been Ms. Jackman,

looked into it. Dr. Hymowitz was not doing in-person evaluations and I think he was way more expensive than Dr. Verno. So I had indicated that I would order Dr. Verno to do a new evaluation.

MR. RUSSELL: You -- you were deceived, Your Honor, and I'll make sure the documents on this were -- are given to you so that's -- that's clear. I -- I don't (inaudible) --

THE COURT: But are you requesting that Dr. Hymowitz complete the evaluation?

MR. RUSSELL: I -- I will -- I -- I will forward you a motion in writing, Your Honor, that has my specific requests as it relates to the past forensics.

THE COURT: Mr. Russell, I am not -- I do -- I'm ordering you not to submit a motion on that issue. I'm directing you to answer my question. I am ordering a forensic evaluation. The issue was whether Dr. Hymowitz would complete it including an update or whether we would start with a new evaluation from Dr. Verno. My question is what would you prefer? And you have just indicated that you are not participating in any evaluation.

MR. RUSSELL: I -- I don't --

THE COURT: So what difference does it make?

MR. RUSSELL: It's -- I'm not sure if you think I'm being rude, but I'm having a hard time answering your

question simply for having the space to do it. My request that we made with Hymowitz is -- is previously on the record. We requested that he both be allowed to issue a -- a report on what he had evaluated and that he also be given time to review the allegations of Walsh abuse.

THE COURT: Okay, that's fine. Then that would require him completing the evaluations, would it not?

MR. RUSSELL: In -- in -- in this case, because Tara's accusations upon which even jurisdiction were based were, you know, fairly particular and extreme items that she's since recanted. And he had very little trouble getting to the bottom --

THE COURT: Mr. Russell, stop it please.

MR. RUSSELL: I -- I don't know how --

THE COURT: I asked you a procedural question, not a substantive question. I don't want to hear what Dr. Hymowitz told you about allegations.

MR. RUSSELL: I -- I -- I will not --

THE COURT: I'm asking you --

MR. RUSSELL: I'll answer.

THE COURT: -- yes or no? Do you want --

MR. RUSSELL: We will not --

THE COURT: -- Dr. Hymowitz to complete the evaluation?

MR. RUSSELL: We -- we will -- we will not

consent to any activity of any additional experts. Our sole goal is to get to trial. You are welcome to take a negative inference.

THE COURT: Okay.

MR. RUSSELL: We will oppose in any --

THE COURT: All right.

MR. RUSSELL: -- way, shape, or form any attempt to do that.

THE COURT: So I'm issuing an order for Dr. Verno to complete the evaluation. If you chose not to participate, it's by the way contempt of a court order, Mr. Russell. You understand what happens when someone refuses to comply with a court order?

MR. RUSSELL: On this particular issue, I am well apprised of the law, Your Honor, and you are a judge. You have a very broad discretion; and I hope you'll use it, and I hope you'll use it well.

THE COURT: You are not going to be permitted to come into court and make allegations and arguments that relate to issues that could've been addressed in an evaluation without submitting to the evaluation.

MR. RUSSELL: Your Honor, are you aware of how many health evaluations Ms. Walsh has skipped and refused to participate in?

THE COURT: I -- I don't know that that is

relevant at this point. What is relevant at this point is whether I can proceed with a custody trial, and in doing so I need to have forensic evaluations. If she fails to comply with my order for the forensic evaluation, I will deal with her in the same manner I will deal with you. So --

MR. RUSSELL: Your Honor, you have a forensic evaluation on -- on the record. There were two forensics ordered in this case.

THE COURT: I -- are you aware of that, Mr. Weddle?

MR. WEDDLE: Judge, I --

THE COURT: I don't see any forensic evaluations.

MR. WEDDLE: No. No, there are none. There was -- there was an order in November of 2018 for Dr. Hymowitz and I believe that was begun, but not completed. I -- I -- well, I think Ms. Jackman told the Court why, being she was here at that time. I was not. Ms. Jackman did reach out to Dr. Hymowitz and, though his rates have gone up, he said he is willing to update and complete the report if the Court wants him to.

MR. RUSSELL: I think that Mr. Weddle is -- is not correct. There -- the -- there was -- the forensic paid by the parties was Hymowitz. The forensic appointed by Gordon-Oliver on her own was a gentleman named Griffin.

The -- there was --

THE COURT: Well, Griffin is a substance abuse. He doesn't do forensic mental health evaluations. He does substance abuse evaluations and I'm aware of Dr. Griffin and -- and --

MR. RUSSELL: He -- he was appointed by Gordon-Oliver as a quote second forensic in the case. I understand it's absurd. I'm simply stating the facts as they are in the transcript.

We also, because there was a long -- a long multiple-week evaluation by a forensic recommended by Tara's primary care physician in San Francisco, we asked to have that admitted and it was opposed on HIPAA grounds, so.

THE COURT: All right. Well, so, again, if you had an attorney, Mr. Russell, you would know how to get that evidence into court in a trial.

MR. RUSSELL: I -- I have multiple attorneys. I am representing myself because --

THE COURT: I understand that, but you're -- again, you're telling me things that are not relevant at this point and I -- I think we've -- we've gone as far as we can go productively today without a new attorney for your daughter. So the Court will have to find an attorney who could represent Evie and I will assign that attorney. I'm going to issue the order for the forensic evaluation by

Dr. Verno. If you fail to comply, or if you fail to comply, Ms. Walsh, there will be appropriate sanctions. So I would encourage you to -- to submit to the evaluations.

And, just so we're clear to wind up now today and tie up all the loose ends, to the extent that you refiled for the third time, the same Family Offense petition --

MR. RUSSELL: Per your request, Your Honor. If -- given that you're -- you're not inclined to grant that and you believe it's the same petition, can you issue a final order on that in -- in writing on the Family Offense petition from today?

THE COURT: I'm not issuing a final order in writing, Mr. Russell. Order the transcript. I said yesterday, I'm saying the same thing today, your Family Offense petition --

MR. RUSSELL: I can't appeal it without (inaudible) --

THE COURT: -- you filed it against -- against John Does. You have -- it is longwinded.

MR. RUSSELL: There are unknown people at (inaudible) house.

THE COURT: It is incomprehensible. It addresses issues that relate --

MR. RUSSELL: I don't believe you've read it.

THE COURT: -- perhaps to custody, as I said.

MR. RUSSELL: It's not. Your Honor, it is -- it is not long and incomprehensible. It is actually a -- per a number of experts in this field, a properly formed document. Ms. D'Ambrosia (ph), I believe, described it to you incorrectly. It is in a separate --

THE COURT: I'm looking at it right now, Mr. Russell.

MR. RUSSELL: Well, it's -- I -- I -- I'd give you whatever time you like to -- to read it, but if you're making a judgment on it, I can -- I cannot appeal it if I do not have a -- a ruling from you. It would be tremendously unfair on top of much other unfairness.

THE COURT: I have said, and now this will be the third, fourth, fifth time I'm saying it, Mr. Russell. This Family Offense petition is not an appropriate Family Offense petition under the law of New York.

MR. RUSSELL: So please (inaudible) --

THE COURT: You raise issues in here that may be very legitimate issues in the context of a custody case, but they are not the appropriate mechanism a Family Offense petition. And I'm not giving you legal advice. You had an attorney. It seems like he just filed what you wanted him to file without regard to the appropriateness of the document.

MR. RUSSELL: I've had three attorneys.

THE COURT: But I --

MR. RUSSELL: He's the one that filed.

THE COURT: I am dismissing the Family Offense petition. All of these allegations are appropriately raised in the context of a custody case and they will be addressed in that context. They are not being addressed in the context of an application for a temporary Order of Protection and my --

MR. RUSSELL: Can you issue that as a ruling though, Your Honor? This is a separate matter.

THE COURT: It's an order. Send me the transcript. I'll so order it.

MR. RUSSELL: Okay, all right, thank you. I appreciate it.

MR. WEDDLE: Your Honor, may I ask a question please?

THE COURT: Yes.

MR. WEDDLE: So you're dismissing Mr. Russell's Family Offense petition. Are you vacating the TOP that was issued in connection with that?

THE COURT: No, I did not issue a TOP. I'm talking about Family Offense petitions of which you are probably not even aware because they came in ex parte and they were dismissed; one on July 28th, one series of paperwork on July 28th; one series of paperwork that was

filed on August 26th, and then again the same or similar set of papers that was filed just this morning. So you've not seen them.

MR. WEDDLE: There is a temporary Order --

THE COURT: It would be the same process as anyone who comes in to file for an Order of Protection and then it gets denied.

MR. WEDDLE: Correct, but, Judge, there is a TOP against my client presently.

THE COURT: Okay, wait, hold on one second. Okay. That's an old one?

THE CLERK: Well, this is the original one right here.

MR. RUSSELL: You granted a TOP, Your Honor, as part of -- in the -- our first hearing. You -- as part of the cleanup of the other various things you had in front of you, you know, you issued -- the -- the Motion to Vacate was granted and you issued temporary custody to Tara. You created an interim visitation order and you created language around two Orders of Protection. I am since -- you know, I'm fine with or without them.

The Order of Protection, Mr. Weddle, was against Steve (ph) and Maura (ph) Walsh for the recent abuse of my daughter and their failure to let her see her family. It was an appropriately, in my belief, filed motion to protect

my daughter in the context of recent and immediate threat to her.

THE COURT: I do -- just before -- before we go on, Mr. Russell, the order -- the Family Offense petition, sorry, that you filed that was dismissed, I guess by Judge Morales Horowitz, was reinstated. I reinstated that.

So there is a Family Offense petition pending filed by you against Ms. Walsh and I have the docket number. That was the zero -- it's O-03599 of '20 and there is actually a current Order of Protection that I signed on July 23rd requiring that Ms. Walsh stay away from you, your home, your place of employment, that she have no communication with you, and that she not assault, stalk, harass, threaten, intimidate, or commit any criminal offense against you.

MR. RUSSELL: Is that the same -- would that be the same docket number as the referenced Humphrey matter where there were the two defaults? Or is that a new -- a new number that --

THE COURT: This -- this was filed in June of 2020. It looks like it was heard by the duty judge on that date and then it went to Judge Morales Horowitz and she dismissed it.

MR. RUSSELL: (Inaudible), Your Honor.

MR. WEDDLE: Your Honor?

THE COURT: For failure to appear on October 20th of 2020. Yes?

MR. WEDDLE: So that's been reinstated. That's the one I have to move to dismiss. I don't have a copy of that petition with that docket number on it.

THE COURT: Okay.

MR. WEDDLE: Can I get --

THE COURT: Can you send that, Eric (ph), please? We'll send that.

MR. WEDDLE: Thank you. And, Judge, also as a housekeeping matter, I've received the Motion for Case Schedule and Clarification of Issues Before the Court. I have not received the other motion that Mr. Russell has filed.

MR. RUSSELL: There should be three that -- there's an abuse motion that was, you know, dismissed. There is a request for -- for your dismissal and for financial damages as it relates to Ms. Walsh misrepresenting her wealth and her family's wealth.

And there was an attempt -- I did spend a lot of time with my attorneys going through, you know, as admittedly this very long and complicated case in order to attempt to reduce the number of issues before us and the -- the instantiation of that is in the third motion, which talks about the exact language in the Motion to Vacate and

what it effects exactly. And the net effect of it should have been, was intended to be, something to make our lives much, much simpler.

MR. WEDDLE: Judge, when we started this conference, and I appreciate you taking the time, I thought I knew what was going on and now procedurally I'm lost. As far as I know, each party has a Temporary Order of Protection against the other. Each --

THE COURT: That's correct. One second, Mr. Weddle, because I was just going to point that out. That is correct.

Ms. Walsh filed a Family Offense petition, docket O-12635 of '19. That Temporary Order of Protection on behalf of her against Mr. Russell was continued and I signed, also on July 23rd, the Order of Protection that Mr. Russell stay away from Ms. Walsh, her home, her place of employment, that he have no communication with her, and that he not assault, stalk, harass, threaten, intimidate, or commit any criminal offense against her.

So I have, at this point, the two Family Offense petitions by each party against the other and the two custody petitions, as well as a number of other papers that Mr. Russell continuously files, which in my mind --

MR. RUSSELL: I -- I --

THE COURT: -- don't seem to serve much purpose

other than to confuse the matters because we have just sat here for over an hour discussing issues that don't even relate to the merits of this case. And if your real goal is to figure out how you can have your daughter, some access to your daughter or custody of your daughter, then we would be talking about those issues and how to proceed to a quick hearing and --

MR. RUSSELL: I -- I would -- I would --

MR. WEDDLE: I'm just sort of --

MR. RUSSELL: This is -- this is indeed my -- my -- my request. But, Your Honor, may I ask a question about Mr. Weddle --

THE COURT: But you keep going down these paths, Mr. Russell, that are irrelevant.

MR. RUSSELL: I'd like a follow -- ask a follow-up.

THE COURT: Talking to me about a California --

MR. RUSSELL: I'd like to ask a follow--up question, please.

THE COURT: -- case from 2018 is not productive --

MR. RUSSELL: I'd like to ask a follow-up question (inaudible).

THE COURT: -- with respect to an issue of custody in 2021.

MR. WEDDLE: Judge, can I continue my procedural?

MR. RUSSELL: (Inaudible) -- I --

THE COURT: Go ahead.

MR. RUSSELL: I just have a question about what Mr. Weddle said. So you gave a docket number for the temporary restraining order. When is the hearing scheduled for Ms. Walsh's temporary order against me?

MR. WEDDLE: It's not --

THE COURT: I've not scheduled that hearing.

MR. RUSSELL: Why has it not been scheduled?

THE COURT: Why? Because every time we come into court, I'm dealing with -- with new petitions that you've filed. We've just spent this whole morning talking about new petitions and revisiting the issue of what old petitions are pending. This -- I'm not ready to do a trial in this case. Nobody even seems to know exactly what's pending. You don't even seem to know exactly what's pending.

MR. RUSSELL: A TOP -- a hearing on the TOP you granted Ms. Walsh was my question, Your Honor.

THE COURT: And there'll be a hearing on that. And I'm ordering the forensic evaluation. At this point, you both have Temporary Orders of Protection, so you're both protected and we'll have a hearing at an appropriate time.

MR. RUSSELL: I -- I'd like to see a hearing or that renewed as is required. A permanent Temporary Order of Protection does not give me a chance to face my accuser. It -- it puts an Order of Protection in place.

THE COURT: Well, exactly, Mr. Russell. You're both in the same position with respect to Temporary Orders of Protection that are full stay-aways.

MR. RUSSELL: I -- I --

THE COURT: Which, by the way, are only on behalf of the two of you. There's no Order of Protection that -- that involves your daughter. Mr. Weddle?

MR. WEDDLE: Yes, Judge, just procedurally again. So we had these two -- two custody -- two Family Offense petitions and now I have three motions I need to respond to; have I got that right?

THE COURT: How many motions do you have pending, Mr. Russell?

MR. RUSSELL: The Family Offense petition you dismissed today, so I believe it makes either no response if --

THE COURT: That's not a motion, Mr. Russell.

MR. RUSSELL: Well, I -- I -- the number three that Mr. Weddle used, he was including that. The -- there was a second motion that relates to the appropriateness of his appointment, as well as fees relating to Jennifer

Jackman. I believe that he should respond --

MR. WEDDLE: But, no, well -- okay. That's -- that's one motion. What is the second motion? I don't -- I -- I can't argue the merits of these things. I just want to know what they are.

MR. RUSSELL: Would you like to know all three including what was dismissed or just the two --

MR. WEDDLE: No, no, no, just what I have to deal with. The Motion for Case Scheduling, I got. The motion to have me fired, I got. Is there anything else?

MR. RUSSELL: The -- the -- there was a motion relating to abuse that the judge ruled was dismissed and -- and not appropriate. There was a --

THE COURT: No, that's not a motion, Mr. Russell. That was a petition. Again, another reason why --

MR. RUSSELL: I --

THE COURT: -- you should be retaining counsel. I don't -- I don't understand why you insist on proceeding pro se because you are going to be hurt by representing yourself.

MR. RUSSELL: You are making a --

THE COURT: Do you have any legal training? Do you have legal training?

MR. RUSSELL: You're making a --

THE COURT: You may have legitimate information

to get before the Court. You may have --

MR. RUSSELL: I have a right to represent myself, Your Honor, and I intend to continue --

THE COURT: What's that?

MR. RUSSELL: I have a right to represent myself. I intend to --

THE COURT: Of course you do, and I am required by New York state law to advise you of the foolishness of that.

MR. RUSSELL: I've -- I've heard --

THE COURT: And you need to understand and I am required by law to tell you repeatedly -- repeatedly how harmful --

MR. RUSSELL: You're not required to say it repeatedly.

THE COURT: -- it is for anyone to represent themselves. You may choose to do it. You may have a lot of information that you may want to present.

MR. RUSSELL: Yeah.

THE COURT: You say you want to present Ms. Walsh's mental health records. You don't know how to get those before me in a legally appropriate way, so I may never ever take a look at them because you're not doing it in a legally appropriate way. Do you understand that?

MR. RUSSELL: I believe that I -- everything I've

done has been in a legally appropriate way.

THE COURT: Well, I'm telling you --

MR. RUSSELL: And you don't.

THE COURT: -- everything you have done is not. And who's the judge in this matter, me or you, Mr. Russell?

MR. RUSSELL: You, and you have very broad discretion in this matter, Your Honor. I have a very high (inaudible) --

THE COURT: This Court is to abide by the rules of evidence. I don't have broad --

MR. RUSSELL: I -- I certainly will --

THE COURT: -- discretion with respect to the rules of evidence, Mr. Russell.

MR. RUSSELL: I don't think I've presented any evidence at this point. I've -- I've -- and Mr. Weddle's question was about three motions. One is, Mr. Weddle, is not a motion. It's a petition, and the judge isn't considering it. It was dismissed. I will be getting an order based on the transcript. The other two, I don't believe she has made a comment on.

MR. WEDDLE: Good, and I'll respond to whatever I'm served with.

MR. RUSSELL: You've been served, Mr. Weddle, under the --

MR. WEDDLE: No.

THE COURT: You accepted. I think you said you did receive those motions. Didn't we discuss that at the very first?

MR. WEDDLE: I -- I -- I received the Motion for Case Schedule and Clarification of Issues Before the Court. I will accept service of the motion to have me relieved as well, but I have not yet been served with it.

MR. RUSSELL: How would you like --

THE COURT: The Motion for Inquiry into Walsh's Financial Condition and Termination of Appointed Counsel Based on Alleged Financial Hardship. That's the caption.

MR. WEDDLE: That's right, Judge. That one. That's the one I don't have.

MR. RUSSELL: How would you -- under the confidentiality order, it's -- I don't believe it's been amended to specify --

MR. WEDDLE: No, no. No. She's represented by counsel. Service on counsel is good service. You don't have to serve her personally.

MR. RUSSELL: Okay. You will be served with that today.

THE COURT: Okay. Mr. Russell?

MR. WEDDLE: And, for the record, Judge?

THE COURT: Yes?

MR. WEDDLE: Just -- just to make sure I've got

this correctly. It's Bernard Street in San Francisco. Is it B-e-r-n-a-r-d?

MR. RUSSELL: Indeed.

MR. WEDDLE: Okay, San Fran. And what's the zip?

MR. RUSSELL: It's 94109.

MR. WEDDLE: 109, because I need to serve you with anything I submit to the Court. I can't submit something to the Court without sending it to you as well. So I will --

MR. RUSSELL: That's correct.

MR. WEDDLE: I will use that address for service.

THE COURT: So --

MS. WALSH: Can I just note -- just fast because I don't want Chris to waste his time. Mr. Russell has used that address for the civil court proceedings and he's been attempted to be served there and they've said that he doesn't -- that's not an accurate address for him, that he doesn't reside there.

MR. WEDDLE: But that's --

MS. WALSH: So I just don't want --

MR. WEDDLE: -- that's -- that's okay. It's the address that I've been given for service.

MS. WALSH: Okay.

MR. WEDDLE: This is the address I will use.

MS. WALSH: Okay.

THE COURT: So in a case --

MR. RUSSELL: Did you have something you need to serve to me?

THE COURT: What's that?

MR. RUSSELL: I just asked Mr. Weddle if he had something he needed to serve me?

MR. WEDDLE: Well, when I reply to these motions, I will have to serve you with my opposition.

MR. RUSSELL: All right. Let's -- you know, because of the fires, it's -- you know, we're -- we're -- we're not in that apartment right now, so you can coordinate with me and I -- and I'll be happy to take your responses.

MR. WEDDLE: Well, no, I -- Mr. Russell --

THE COURT: So where are you staying, Mr. Russell?

MR. RUSSELL: A hotel outside of San Francisco until the fires calm down. They seem to be calming down now, at least in that area.

THE COURT: Is that where you are now?

MR. RUSSELL: I'm -- yes, an Airbnb is where I'm at right now.

THE COURT: Okay.

MR. WEDDLE: Mr. Russell, my problem is I'm -- I'm -- the rules of procedure are fairly formal and so I

need an address for service. Should I use this address or should I use something else?

MR. RUSSELL: You -- you can -- you can use that address. I assume that I can accept service over email and I'll receive a secondary copy of that over email as well.

THE COURT: If you're --

MR. WEDDLE: No, then, I'll --

THE COURT: If you're agreeing to accept service over email --

MR. WEDDLE: -- I'll serve --

THE COURT: -- it's on the record. Mr. Weddle, send it to him by email and you respond, Mr. Russell, that you've received it and you accept service.

MR. RUSSELL: Of course, Your Honor.

MR. WEDDLE: Very well, Judge.

THE COURT: So I do, before we adjourn and we'll pick a date, just want to explain to you that -- that you do have the right to have an attorney represent you with respect to this custody petition. And you also do have the right to waive your right to counsel and to represent yourself.

The Court is required, as I said under New York law, to make sure that a pro se litigant understands the impact of that. I am required to make a searching inquiry to determine that your decision to represent yourself is

made knowingly, intelligently, and voluntarily. Do you understand that?

MR. RUSSELL: Uh-huh. You suspect (inaudible).

THE COURT: Okay. If you chose to represent yourself today, you can retain counsel at another time. I don't think anyone has ever asserted that you're entitled to a Court-appointed attorney, but if you are indigent, you have the right to ask for a Court-appointed attorney. Do you understand that?

MR. RUSSELL: What is the standard for having a Court-appointed attorney?

THE COURT: Well, it's -- it's indigency basically.

MR. RUSSELL: Will you -- I'm just -- I assume there's a legal definition. I would --

THE COURT: You know what? If you submit -- if you think that you would qualify, you submit your paperwork and the Court will make a determination. If you chose to represent yourself and act as your own attorney and the case goes to trial, you have the responsibility to issue subpoenas, to present testimonial and documentary evidence, to make objections, to answer objections to inadmissible testimony or documentary evidence when there is a legal basis to do so. Do you understand that?

MR. RUSSELL: I will have an attorney for the

trial, Your Honor.

THE COURT: Okay. But I'm just --

MR. RUSSELL: I -- I -- I do understand that, but I will have an attorney for the trial.

THE COURT: And we did discuss the fact that you're looking to get in certain evidence and that it needs to be done in a legally appropriate manner under New York law. You understand that?

MR. RUSSELL: I -- I do, Your Honor. I have an attorney --

THE COURT: If you continue to represent yourself, you would be responsible for questioning and cross-examining witnesses, including experts, just as an attorney would do. Do you understand that?

MR. RUSSELL: I would look forward to it, Your Honor.

THE COURT: So listen carefully to the next series of questions that I'm going to ask you concerning your request to represent yourself. How old are you, Mr. Russell?

MR. RUSSELL: I'm 46 years old.

THE COURT: What's your level of education?

MR. RUSSELL: I received a BA in Economics from Stanford University.

THE COURT: Okay. And do you fully understand

English?

MR. RUSSELL: It's my first language and I -- I believe so.

THE COURT: Can you tell me if you have recently taken or are now taking any medication that would interfere with your ability to understand what is happening in court?

MR. RUSSELL: Not to my knowledge, Your Honor.

THE COURT: Do you have or have you had any mental or physical condition that would impair your ability to follow what is happening in court?

MR. RUSSELL: No.

THE COURT: Have you had sufficient time to reflect on representing yourself?

MR. RUSSELL: I have, Your Honor.

THE COURT: Okay. And what is your previous exposure to legal proceedings? I'm going to ask you that question with respect to New York because I understand there's a lot of stuff pending in California, but New York has different standards.

MR. RUSSELL: My litigation in New York has included a -- corporate suits. With respect to the family member, the primary New York litigation has been relating to enforcement actions against the Walsh family for evading testimony and deposition.

THE COURT: So did you represent yourself for

those proceedings or you had counsel?

MR. RUSSELL: No, Your Honor, the individual who -- who will almost certainly be representing me at trial represented me in those. So --

THE COURT: Here -- here in New York, Mr. Russell?

MR. RUSSELL: Correct. He is licensed and -- and licensed through the Bar. His -- he's also -- as you know, there -- there's an open FBI investigation in a criminal matter.

THE COURT: No, I don't know that, Mr. Russell.

MR. RUSSELL: How -- well --

THE COURT: And I will not be able to know that at trial unless it is presented to me in a legally appropriate fashion. Is this attorney familiar with family law?

MR. RUSSELL: Indeed. He's -- he represented me at the beginning of this case in Westchester Family Court before Judge Gordon-Oliver and, you know, your -- if Your Honor has any objections to -- to him, Max Difabio can also be retained for the trial.

THE COURT: It's not for the Court to decide who you should retain. And you've had a lot of exposure to legal proceedings in California with counsel, Mr. Russell?

MR. RUSSELL: I will say they are very different

than Westchester Family Court, but in the course of, you know, 30 years of business, I am -- I've had quite a bit of exposure, as well as with the federal RICO case against the defendants, you know, I now have exposure of federal statutes and RICO statutes.

THE COURT: But are you familiar with the civil practice law and rules and the rules of evidence in New York?

MR. RUSSELL: In the context as would be necessary for trial?

THE COURT: Yes.

MR. RUSSELL: I -- I won't be representing myself at trial, Your Honor. I'm --

THE COURT: So do you think it might be helpful for any attorney who does represent you at trial to be present during all of these pretrial proceedings to get a sense of what's happening?

MR. RUSSELL: I -- I -- I do not for one reason and, you know, given sort of the nature of the conversations I won't go into any of it. But you have been told a number of things that are false by individuals around you and who have now recused themselves.

And I -- my hope is that in addition to, you know, if you can help me be responsive and not be off topic and I'm certainly amenable to all advice and input from

you. But one of my goals is to correct those misperceptions that have been given you.

And this is -- it's been three years, Your Honor, and I know you feel like this is -- this has been a difficult session and perhaps we didn't make the exact progress you wanted to make, but this is the first --

THE COURT: What I feel like, Mr. Russell, is that you have an agenda, that you want to make certain statements, and that you're doing that at the expense of what I think are the actual substantive relative issues in this case. So I'm going to continue to ask these questions that I'm required to ask of you and we'll continue.

MR. RUSSELL: Okay.

THE COURT: You understand that some areas of law are very complicated and that even not a lawyer should represent himself or herself in a court proceeding?

MR. RUSSELL: I -- I -- I will repeat again for the record that at trial I will be represented. This --

THE COURT: That's fine, Mr. Russell. You're here unrepresented now. So I'm asking you these questions.

MR. RUSSELL: I -- I -- I -- I am, but these -- these conferences are not a trial.

THE COURT: Do you understand that what you're saying now and at any conference is on the record and that some of the things that you say could possibly be used by

Mr. Weddle against you in a future trial?

MR. RUSSELL: Yeah, in --

THE COURT: And not in a criminal sense, but -- but you seem to think that this is an unimportant process, but it's all being recorded and it may come back --

MR. RUSSELL: I -- I -- Your Honor, I -- first of all, I -- I -- that statement is untrue and inappropriate. I came to this hearing with three well thought out, well researched, well intended motions, petitions. They have been, for a variety of reasons -- you don't believe them to be something that should be top of mind, but to think that I have been casual with any of this? I have been to Chappaqua over three years. I have spent no less than a year in that city having 16 visits with five different supervisors and I am continually greeted with individual --

THE COURT: Okay, Mr. Russell, those are the merits.

MR. RUSSELL: -- who do not know --

THE COURT: I don't want to hear merits. I'm asking you the questions that I am required to ask you before --

MR. RUSSELL: It was not a merit conversation, Your Honor. It was a statement that you --

THE COURT: Do you understand --

MR. RUSSELL: -- do not know the case, neither

does Mr. Weddle.

THE COURT: Have you ever heard the expression he who represents himself has a fool for a client?

MR. RUSSELL: Indeed, yeah.

THE COURT: It's actually on my list of questions to ask.

MR. RUSSELL: Is -- is that really? That's funny.

THE COURT: It is.

MR. RUSSELL: Is that a personal --

THE COURT: Do you understand -- do you understand that you may be required to prepare and issue your own subpoenas for the production of witnesses and documents for trial?

MR. RUSSELL: I -- I -- I will not be representing myself at trial.

THE COURT: Okay. Do you realize that you would have to make your own opening and closing statements if you choose to do so?

MR. RUSSELL: I will not be representing myself at trial.

THE COURT: Do you understand that you will be expected to present direct evidence and explore the testimony of opposing witnesses on cross-examination?

MR. RUSSELL: So, I'm just going to answer yes as

opposed to repeating what I've just been repeating, but, yes, I -- I do know that and --

THE COURT: Do you understand that you'll be expected to make appropriate objections to the testimony or documents of the opposing side when there's a legal basis to do so?

MR. RUSSELL: Of course, I -- I know that.

THE COURT: Do you realize -- and this is very important because this seems to me to be one of your biggest risks.

MR. RUSSELL: Uh-huh?

THE COURT: Do you realize that you risk not being able to introduce evidence because you are not familiar with the rules of evidence?

MR. RUSSELL: Are you speaking about at trial?

THE COURT: Yes.

MR. RUSSELL: I will not be representing myself at trial.

THE COURT: Do you understand that you may be expected to produce and cross-examine expert witnesses if called for in the context of the case?

MR. RUSSELL: I -- I -- I do, and I will not be representing myself at trial.

THE COURT: Do you understand that you risk not being able to understand legal terms that are used in these

legal proceedings?

MR. RUSSELL: Like indigent? Yes, I -- I understand. I do not understand the definition of that word, but I will get out Black's Law Dictionary and attempt to find out.

THE COURT: Do you understand that you will be held to the same legal standards as an attorney despite your lack of a legal education and that, therefore, you risk losing your case or your defense due to a lack of legal knowledge?

MR. RUSSELL: I -- I -- I do know that, Your Honor, but I would -- I would ask in the time between now and the trial that pro se defendants are often afforded both leeway and some -- a modicum of interaction and help so as to not derail things with their inexperience. Is that something that you will help --

THE COURT: No. Do you understand that you will receive no advantage or assistance from the Court, as this Court is the impartial arbiter of the dispute in this case and that the Court is not able to assist you in these proceedings and that no one is going to go easy on you because you are representing yourself? Do you understand all of that, Mr. Russell?

MR. RUSSELL: I -- I do now.

THE COURT: Do you understand that you will be

expected to conduct yourself appropriately in the courtroom?

MR. RUSSELL: Of course.

THE COURT: Have you been coerced or threatened or in any way influenced to represent yourself?

MR. RUSSELL: To represent myself?

THE COURT: Yes.

MR. RUSSELL: No.

THE COURT: Are you fully familiar with the allegations against you in this case and are you familiar with the statutory and case law that may be applicable to those allegations?

MR. RUSSELL: The allegations were dismissed by Judge Horowitz on October 19th and withdrawn by Tara and dismissed with prejudice in San Francisco. There are no allegations in this case. You're proceeding under a mistake.

THE COURT: Are you aware that many times people who represent themselves at trial are unsuccessful?

MR. RUSSELL: I -- I -- I -- almost two to one I would -- I would think that they're unsuccessful, but, yes, I am aware of the track record of pro se litigants.

THE COURT: And your mother's here today too?

MR. RUSSELL: Correct.

THE COURT: Ms. Russell, by yourself?

MS. RUSSELL: May I just say one thing?

THE COURT: Yes.

MS. RUSSELL: If I get in trouble because I don't know. I just wish you would get this custody trial set up so -- because it needs to be done. I miss Evie. I love Evie. We have fun and when I see Evie, Stephen should be allowed to see her with me. She likes him. She just blossoms when he talks to her and this is all so ridiculous and you see that these two -- I mean, I -- I can tell you plenty if I'm at trial. I won't say anything now. But I'm -- I'm just telling you we need to get Evie seeing both her parents; and if Tara is a loving mother, she'll allow it. That's all I want to say.

THE COURT: Well, there's always -- there's always a possibility you could try to resolve this matter between yourselves, but I am required by law and, again, if you were an attorney you would understand this. I am ordering -- I have to order forensic evaluations in this case.

MS. RUSSELL: That's fine.

THE COURT: The Appellate Division prefers that there be forensic evaluations in these types of disputes.

MR. RUSSELL: Your Honor, could there be visitations before the forensic evaluations? Is my mother going to need a forensic evaluation?

THE COURT: No, she's -- she's not, but she will most likely be a collateral meaning that any evaluator would want to speak to her for sure.

MR. RUSSELL: What is the basis that my mother lost your order --

THE COURT: She wasn't in court.

MR. RUSSELL: Huh?

THE COURT: She wasn't in court.

MS. RUSSELL: Your Honor?

MR. RUSSELL: You ordered it prior to court.

MS. RUSSELL: I finally got my computer set up for this yesterday, and I know when I called before, I was off -- I had to get off of the expressway. I was driving up there and I couldn't get through and then they said they didn't want me when I called that phone number on the phone. So, anyway, but I'll stop talking.

THE COURT: Yeah. Yeah, so that --

MR. RUSSELL: Let me --

MS. RUSSELL: But just try to get this so they can get custody.

THE COURT: That's -- that was an Order to Show Cause. I'm looking to pull that up now. And when we had the last court proceeding, which was --

MR. RUSSELL: In this --

THE COURT: -- with everybody present, which was

July 23rd. Mr. Difabio said that Mr. Russell was not present because he was experiencing symptoms from COVID, and that you, Ms. Russell, would not comfortable appearing without your son. That's what was said on the record.

MR. RUSSELL: Your Honor, the -- the --

THE COURT: So I did grant interim relief in the Order to Show Cause, but nobody was here to address whether or not that would be continued. And we've just spent the whole morning talking about things, as I said, that do not address the merits of this case.

MR. RUSSELL: Your Honor, may I speak to the merits just briefly because it is fairly straightforward? Mr. Weddle --

MR. WEDDLE: Judge? I'm -- I'm sorry, Mr. -- Mr. Russell, I'm doing to you what I asked you not to do to me and I am interrupting you, but I'm --

MR. RUSSELL: It's -- it's okay.

MR. WEDDLE: -- and I apologize.

MR. RUSSELL: Go ahead.

MR. WEDDLE: With -- without an AFC being present, Judge, I -- I do not think that argument on the substantive issues of custody and visitation is appropriate. We need to be able to hear from the child.

MR. RUSSELL: I -- I -- I'm not going to argue substantive issues.

THE COURT: That's -- that's correct. When -- when -- when judges are reassigned or attorneys are reassigned, it delays the case and that's unfortunate. It's unfortunate for Evie because I'm sure she would love to have a relationship with -- with her parents.

MR. RUSSELL: Your Honor, my objection doesn't relate to what Mr. Weddle says.

THE COURT: All right. I'm going to give you a date --

MR. RUSSELL: Did you hear me, Your Honor?

THE COURT: -- for a conference.

MR. RUSSELL: I had an objection. I had an objection, but it's not based on what you and Mr. Weddle agreed. My objection is simply this. That Mr. Weddle felt that the letter written by my mother was false and this was the basis of his motion and you responded prior to trial and stopped visits. And it is also true that you did not have the opportunity to -- to hear her.

THE COURT: That's correct.

MR. RUSSELL: The issue of whether or not my mother is here, that document was sworn and signed and notarized. Mr. Weddle made that accusation baselessly using a draft document that he inappropriately shared from a settlement discussion.

So we do not need to have an AFC or blah, blah,

blah to know that the document Mr. Weddle shared with you was not my mother's final letter, that my mother did indeed sign and notarize that letter, and there is zero reason to stop. It's purely punitive in my opinion to do so.

It is not in Evie's best interest regardless, and an AFC is not required to adjudicate on that matter. That is a procedural matter that -- that you will decide, you know, solely, you know, based on the obvious facts of it.

THE COURT: All right. Let's pick a date. September 24th in the afternoon?

MR. RUSSELL: For -- for what?

THE COURT: That's for a conference. So we'll have a new AFC present. I told you today I'm issuing the order for the forensic evaluation. I'm continuing both Temporary Orders of Protection with the same --

MR. RUSSELL: I won't be present for any more conferences.

THE COURT: -- under the same conditions. I'm sorry? I'm didn't hear you, Mr. Russell.

MR. RUSSELL: I won't be present at any further conferences. And you're welcome to make a ruling and take negative inference for that. I will be present with an attorney at trial. I don't speak for Ms. Russell.

THE COURT: If you fail to appear at court proceedings, Mr. Russell, I will dismiss your petitions.

You can't pick and choose when you want to appear in court. You understand that?

MR. RUSSELL: I understand.

THE COURT: I will dismiss your petitions if you fail to appear at further proceedings.

MR. RUSSELL: I -- I understand. I will not be appearing and I'll expect you to dismiss those petitions, though I believe it's inappropriate and I will appeal it. But --

THE COURT: I have no problem. Appeal it.

MR. RUSSELL: Yeah. No, of course. It's not a --

THE COURT: September 24th at 2:30? Does that work, Mr. Weddle?

MR. WEDDLE: It -- it does not, Your Honor. I'm in front of another judge at that precise time.

MR. RUSSELL: And, Judge, I'm not -- I'm not available --

MR. WEDDLE: I could do 3:30. I could do --

MR. RUSSELL: -- as well.

THE COURT: I can't -- Mr. Russell?

MR. RUSSELL: Yes?

THE COURT: I can't hear you when you speak over other people. What are you saying?

MR. RUSSELL: I agreed I -- I am also not

available on September 24th.

THE COURT: Okay. So that's fine. I have plenty of other times to throw out. How about September 29th in the morning?

MR. WEDDLE: That's -- oh, I'm sorry, Judge, I'm looking at the wrong month. It's a terrible morning, Judge.

THE COURT: No good?

MR. WEDDLE: No good, and I have a trial that afternoon.

MR. RUSSELL: I'm also unavailable on September 29th.

THE COURT: Okay. October 1st?

MR. WEDDLE: In the afternoon.

THE COURT: I can do the afternoon, Friday, October 1st?

MR. WEDDLE: Can we do 3:00?

THE COURT: We can.

MR. RUSSELL: I'm available on October 1st at 3:00.

THE COURT: Ms. Russell?

MS. RUSSELL: Me?

THE COURT: Yes?

MS. RUSSELL: Boy, I don't know, but I shall certainly try.

THE COURT: Are you planning on hiring an attorney, Ms. Russell?

MS. RUSSELL: No. No.

MR. RUSSELL: Procedural question, Your Honor. Does -- do these need to be grouped? Is -- is my mother -- is Linda Russell able to pursue this independently or will we always be having these kind of --

THE COURT: No, it's --

MR. RUSSELL: -- everything (inaudible) --

THE COURT: It's pretty typical when there are -- when there are related proceedings involving one child that they're heard at the same time.

MR. RUSSELL: Uh-huh.

THE COURT: It's typical. I mean, it's not -- if there was some reason to separate them, I would do that, but I don't see a reason at this point to separate the proceedings.

MR. RUSSELL: And you're aware that -- that the loss of the AFC is due to my whistleblower status against Faith Miller and --

THE COURT: I'm not aware of that. I'm aware that you say that. But I don't know what you mean by whistleblower status.

MR. RUSSELL: Would you like me to address it?

THE COURT: Are you aware, Mr. Weddle?

MR. WEDDLE: I -- I -- I'm not entirely aware. I -- I suspect it's because of Ms. Miller's relationship with a member of the bench, but I don't know that for sure.

THE COURT: Okay. Go -- go ahead, Mr. Russell.

MR. RUSSELL: Whistleblower status in this case is cooperating with the county, state, and federal authorities. It includes testimony that began with Gordon-Oliver's appointment of two individuals. Probably the -- the core of the investigation is around Raymond Griffin, who has turned out to be a fake doctor, who harmed a lot of people over 30 years. He has fled the state. He has been delicensed.

THE COURT: Okay. I'm aware of Dr. Griffin. So you're saying you were a whistleblower with respect to Dr. Griffin?

MR. RUSSELL: I'm the reason he no longer is licensed and fled the state, yes.

THE COURT: Okay.

MR. RUSSELL: And part --

THE COURT: But I don't understand how this relates to this litigation.

MR. RUSSELL: He -- he appointed Faith Miller, Delia Farquharson and Raymond Griffin and as well as the main assertion of jurisdiction that were inappropriate and under investigation, specifically with Faith Miller.

Mr. Weddle is right. Because of her relationship with Alan Scheinkman, she, in a decision, was embargoed from participating in exactly this type of -- of AFC appointment because of --

THE COURT: Okay. So, Mr. Russell, I'm not sure I understand what you're saying because the Court assigns attorneys to represent children on the basis of a list. We're required to do that. If someone is not on that list, we cannot assign them. So I don't understand really what you're talking about.

You're referring to people that were -- that are used in the court all the time. I understand something happened with Dr. Griffin. He's no longer on the list. We can no longer assign him.

MR. RUSSELL: I -- I'm -- I'm --

THE COURT: Ms. Farquharson, she's still on the list.

MR. RUSSELL: I'm informing you that I am cooperating with county, state, and federal folks with relation to all the individuals I mentioned. I attempted to share some of the details. I don't need to, but being a whistleblower means that under the whistleblower statute, I have notified what I know. I have agreed to cooperate. I have been cooperating and indeed the delicensing of Griffin should serve as, you know, I think strong indication that I

am -- you know, that I've been effective and what I've brought forward has been considered to be, you know, valuable, useful, appropriate information.

THE COURT: But, again, how does that impact litigation? And, by the way, I thought I saw that Dr. Griffin's report was favorable to you.

MR. RUSSELL: The -- Dr. Griffin wrote a -- a report that stated that Ms. Walsh did not have a problem with drugs and alcohol when she --

THE COURT: Oh, I see, okay.

MR. RUSSELL: -- is in AA, yeah.

THE COURT: Enough -- enough said, Mr. Russell.

MR. RUSSELL: And that -- that (inaudible).

THE COURT: I understand. Enough said. So but how does the fact that you're a whistleblower and you're cooperating with county, state, and federal investigators impact this litigation? Like what does that have to do with this case?

MR. RUSSELL: Well, in -- in -- in this case, Ms. Jackman specifically as Faith Miller's partner is conflicted under the same order that prevents Faith Miller from taking those seats, so.

THE COURT: Okay. So that's fine, and she's been relieved.

MR. RUSSELL: Well --

THE COURT: Is there any other impact on the litigation at this point?

MR. RUSSELL: You know, the -- the -- the net effect of the items that, you know, you've sort of stipulated to at this point has been that the AFC -- you know, the only report in the catalog right now is from a fake doctor. The AFC in this case, who's been dismissed, should not have been a part of this. And Horowitz kept my daughter away from me a year and a half.

And what I'd ask is rather than taking this -- you know, maybe to make a point, but that there is no reason that visits as previously ordered when my daughter had representation can't be continued now that you know that Mr. Weddle's accusations are not true.

And Evie's interest is the first, the primary, interest of this Court. There -- there is no basis for -- for really any of this, and my daughter deserves to have a grandmother and a father. And I would appeal to you that to, just for a moment, set aside the obvious fact that I am not a lawyer and you could browbeat me with every mistake I make. I hope I make very few.

But my daughter is three and a half years old and she loves her dad. We have a great time. She loves her grandma. They have a great time. And it would be wonderful if she could be reconnected with her father and

her grandmother while, you know, we go through what is --

THE COURT: It would. I agree with you, Mr. Russell.

MR. RUSSELL: -- (inaudible).

THE COURT: When was the last time you were in New York?

MR. RUSSELL: I -- I am in New York whenever allowed. It's literally a four-hour flight, Your Honor, and I can be there whenever. I am not allowed by Steve Walsh to do this. I am simply not allowed and people -- I -- I cannot tell you how much I resent the question because it implies that I have quote not been taking my visits, and this is just a lie. It is a straight up lie.

THE COURT: Mr. Weddle?

MR. RUSSELL: I lived in Chappaqua for a year.

THE COURT: Okay, one moment. Mr. Weddle?

MR. WEDDLE: Judge, this cuts directly to the core of the case. I mean, Mr. Russell appears to want to skip the trial and go straight to him having custody. I -- I have directed --

MR. RUSSELL: That's baseless.

MR. WEDDLE: I don't know what my client's family has to do with this. I imagine that's evidence that will be determined at trial, but we're really going to the core or the substance of these -- these battling petitions.

MR. RUSSELL: I'll -- to -- you know, a quick rebuttal, Your Honor.

MR. WEDDLE: Well, I didn't -- actually, I wasn't quite finished.

MR. RUSSELL: Oh, then I'll stop.

MR. WEDDLE: I mean, the other -- the other puzzling thing is that Mr. Russell has said that he's not going to participate in forensics. He is not going to participate in court conferences, which makes me question in some level what it is that's truly important to Mr. Russell; whether it is the relationship between him and his daughter, which I agree with the Court is -- is important. And if they can have a healthy and safe and wonderful relationship, that's -- that's best for the child but --

THE COURT: So if you are available to come to New York, Mr. Russell, I'm going to have a new AFC on the next court date, October 1st. We are certainly going to discuss your access with your daughter. And you are certainly free to continue to talk to Mr. Weddle to see if you can resolve this, you know, in a manner that you and Ms. Walsh find acceptable.

But I'm -- I am out of time, and so we're going to have to conclude the proceedings. I will see you all October 1st at 3:00. Thank you.

MS. RUSSELL: Is that on this -- on this thing or in court?

THE COURT: It's by -- it's virtual.

MS. RUSSELL: Okay. Okay.

THE COURT: You'll get another link.

MS. WALSH: Your Honor?

THE COURT: And I encourage you, Ms. Russell, to get an attorney as well. Thank you.

MR. WEDDLE: Thank you, Judge.

MS. RUSSELL: Thank you, Your Honor.

COURT OFFICER: Off the record.

MR. RUSSELL: I will note that I was not given a chance to respond to Ms. --

(12:12:50 p.m.)[PROCEEDING CONCLUDED]

CERTIFICATE: I, Valeri Wilson, certify the foregoing transcript of proceedings held at Yonkers Family Court, NYS, Walsh vs. Russell, File #154703, multiple dockets, was prepared using the required electronic equipment and is a true and accurate record of the proceedings.

Signature: Date September 14, 2021

Valeri Wilson

Electronic signature

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